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Case Number: 26STCV10590 Hearing Date: July 7, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

BRITTANY

TODD,

Plaintiff(s),

vs.

LOS

ANGELES RAMS, LLC, et al.,

Defendant(s).

Case No.:

26STCV10590

Hearing

Date:

July 7,

2026

[TENTATIVE]

ORDER RE:

MOTION TO COMPEL ARBITRATION

I. BACKGROUND

Plaintiff Brittany Todd

(“Plaintiff”) was employed by Defendant Los Angeles Rams, LLC (“Rams”) from July 2017 through March 10, 2026.

Plaintiff alleges she was terminated after lodging complaints against her immediate supervisors, Megan Elcock and Meagan Roberts, for consuming alcohol during work hours to the point of extreme intoxication, coercing subordinates to consume alcohol, berating employees to an abusive level after becoming intoxicated and berating employees regarding their religious views. Plaintiff alleges her supervisors terminated her immediately upon discovering that she reported them to Human Resources.

On April 1, 2026, Plaintiff filed a complaint against Defendant Los Angeles Rams, LLC alleging (1) retaliation (Gov. Code §12940(h)); (2) whistleblower retaliation (Labor Code §1102.5); (3) wrongful termination in violation of public policy; (4) failure to prevent harassment, discrimination and retaliation (Gov. Code §12940(k)); (5) hostile work environment (Gov. Code §12940); (6) religious discrimination and harassment; (7) constructive discharge; (8) negligent retention and supervision.

On May 5, 2026, Defendant Los Angeles Rams, LLC filed the instant motion to compel arbitration. On June 22, 2026, Plaintiff Brittany Todd filed an opposition to the motion to compel. On June 29, 2026, Defendant filed a reply.

II. LEGAL STANDARD

A.

Federal
Arbitration Act (“FAA”)

“A written provision in any [] contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof, or an agreement in writing to submit to arbitration an existing controversy arising out of such a contract, transaction, or refusal, shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.)

“If any suit or proceeding be brought in any of the courts of the United States upon any issue referable to arbitration under an agreement in writing for such arbitration, the court in which such suit is pending, upon being satisfied that the issue involved in such suit or proceeding is referable to arbitration under such an agreement, shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration.” (9 U.S.C. §3.)

“[T]he United States Supreme Court has identified three categories of activity that Congress may regulate under the commerce power: (1) the channels of interstate commerce, (2) the instrumentalities of interstate commerce and persons or things in interstate commerce, and (3) those activities having a substantial relation to interstate commerce. The party asserting FAA preemption bears the burden to present evidence establishing a contract with the arbitration provision affects one of these three categories of activity, and failure to do so renders the FAA inapplicable.” (Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 238.)

“The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.” (Davis v. Shiekh Shoes, LLC (2022) 84 Cal.App.5th 956, 963.)

In addition, the express incorporation of the FAA for the enforcement of this arbitration agreement incorporates the procedural provisions of the FAA. Under Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, the language regarding enforcement of the

arbitration agreement under the FAA incorporates the FAA's procedural requirements and renders §1281.2(c) inapplicable. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 344-345 (arbitration provision providing that "enforcement [of the arbitration agreement] shall be governed by the [FAA]" incorporated procedural provisions of the FAA and trial court erred when it denied the motion to compel applying Code of Civ. Proc. §1281.2(c).[1])

B.

California

Arbitration Act

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or

(b) Grounds exist for rescission of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact." (§1281.2.)

"The trial court may resolve motions to compel arbitration in summary proceedings, in which the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.

The party seeking arbitration bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability by a preponderance of the evidence." (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 718 (trial court properly decided plaintiff's

challenge to arbitration agreement despite delegation clause where plaintiff attacked contract formation and very existence of agreement to arbitrate).)

“If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (§1281.4 (para. 1).)

III. DISCUSSION

A. Plaintiff entered into an applicable arbitration agreement

On April 29, 2025,

Plaintiff signed the update to Defendant's Employee Handbook. (Motion, Buckner Dec., ¶¶3-4.) The update included an update to the

arbitration provision as detailed in “3.15 Employee Complaint Procedure & Resolution” (“Arbitration Agreement”). The Arbitration Agreement provides:

“Employee and the Rams

desire that all matters in dispute between them, whether raised by the Employee or raised by the Rams, be resolved fairly and promptly. Accordingly, except as provided for in the second paragraph of this Procedure, Employee and the Rams agree that any claim, controversy or dispute that may arise directly or indirectly in connection with Employee's employment or termination of employment with Rams, and/or any associated or related disputes arising therefrom involving Rams and/or employee(s), director(s), officer(s) or agent(s), partner(s), successors, assigns, administrators, fiduciaries, or any subsidiary or affiliated company or corporation of Rams, whether arising in contract, statute, tort, public policy, common law or any other legal theory, including, but not limited to, claims or other disputes regarding...discrimination, retaliation, harassment, termination, including but not limited to those arising under...the Fair Employment and Housing Act, the Labor Code...or any similar federal, state or local law or regulation, or under the NFL Constitution and Bylaws, whenever brought, shall be subject to final and binding arbitration pursuant to this Procedure.” (Motion, Buckner Dec., Ex. B.)

The Arbitration

Agreement expressly applies to Plaintiff's claims for discrimination, retaliation, and termination.

Plaintiff's claims arise out of her employment with the Defendant. (Complaint, ¶¶12-61.)

Plaintiff does not deny

that she signed the update. Plaintiff

does not deny that her claims fall within the scope of the Arbitration

Agreement.

Defendant establishes an

applicable arbitration agreement based on undisputed facts. The court must compel arbitration unless

Plaintiff can establish that the Arbitration Agreement is unenforceable. (9 U.S.C. § 2 (arbitration agreement "valid, irrevocable, and

enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract"); §1281.2, subd.

(a)-(c)(waiver, grounds exist to rescind or other parties involved in proceeding not subject to arbitration and danger of conflicting rulings of law or fact).)

B. Federal Arbitration Act applies but not procedural provisions

The Arbitration

Agreement provides, "[a]s the Rams are engaged in interstate commerce, this

Agreement is subject to the Federal Arbitration Act, although the Parties will

follow the enforcement provisions of the California Arbitration Act." The FAA applies to the Arbitration Agreement by the parties' express agreement.

Plaintiff does not dispute that the FAA applies.

C. Unconscionability

Plaintiff does not

dispute that her claims fall within scope of the Arbitration Agreement. However, Plaintiff argues the Arbitration Agreement is unenforceable because it is unconscionable.

Under both California

and federal law, arbitration agreements are valid and enforceable except where grounds exist for revocation. (Armendariz

v. Foundation Health Psychare Services, Inc. (2000) 24 Cal.4th 83, 98 ("Armendariz").) "Because unconscionability is a reason for

refusing to enforce contracts generally, it is also a valid reason for refusing to enforce an arbitration agreement under section 1281, which, as noted, provides that arbitration agreements are valid, enforceable and irrevocable, save upon such grounds as exist [at law or in equity] for the revocation of any contract. The United States Supreme Court, in interpreting the same language found in section 2 of the FAA (19 U.S.C. § 2), recognized that generally applicable contract defenses, such as fraud, duress, or unconscionability, may be applied to invalidate arbitration agreements.” (Id. at 114.)

“To briefly recapitulate the principles of unconscionability, the doctrine has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results. (Armendariz, *supra*, 24 Cal.4th at p. 114.) “The prevailing view is that procedural and substantive unconscionability must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. But they need not be present in the same degree. Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves. In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1243–1244 (quoting Armendariz, *supra*, 24 Cal.4th at 114).)

1. Plaintiff

establishes a moderate degree of procedural unconscionability

“The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. Oppression occurs where a contract involves lack of negotiation and meaningful choice, surprise where the allegedly unconscionable provision is hidden within a prolix printed form. When the contract is a contract of adhesion imposed and drafted by the party with superior bargaining power, the adhesive nature of the contract is evidence of some degree of procedural unconscionability. However, the fact that an agreement is adhesive is not, alone, sufficient to render it unconscionable.”

(Malone v. Superior Court (2014) 226 Cal.App.4th 1551, 1561.)

“The term contract of

adhesion signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (Armendariz, supra, 24 Cal.4th at 113.) Thus, a form agreement presented on a

preprinted form and offered on a take-it-or-leave-it-basis would render it a contract of adhesion. (Baltazar,

supra, 62 Cal.4th at 1245.) Where a

contract of adhesion is presented but there is no element of surprise or oppression, the Court must be “particularly attuned” to a claim of unconscionability, but the agreement is “not subject[ed] to the same degree of scrutiny as contracts of adhesion that involve surprise or other sharp practices.” (Id.)

As acknowledged in Armendariz,

“in the case of preemployment arbitration contracts, the economic pressure exerted by employers on all but the most sought-after employees may be particularly acute, for the arbitration agreement stands between the employee and necessary employment, and few employees are in a position to refuse a job because of an arbitration requirement.” (Armendariz,

supra, 24 Cal.4th at 115.) Moreover,

“arbitration contracts imposed as a condition of employment are typically adhesive,” and the “pertinent question” is whether circumstances of the contract’s formation created such oppression or surprise that close scrutiny of its overall fairness is required.” (OTO,

L.L.C. v. Kho (2019) 8 Cal.5th 111, 126 [employee demonstrated high degree of procedural unconscionability and oppression based on circumstances surrounding execution of arbitration agreement; employee was presented prolix agreement with complex terms in his workspace, along with other employment related documents and without explanation of its terms, and told he was required to sign agreement to maintain employment].)

“The circumstances

relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5)

whether the party's review of the proposed contract was aided by an attorney." (Id.)

A showing of surprise

may establish a higher degree of procedural unconscionability than that

inherent in a contract of adhesion. (OTO,

L.L.C., *supra*, 8 Cal.5th at 10.) "When

. . . there is no other indication of oppression or surprise, 'the degree of

procedural unconscionability of an adhesion agreement is low, and the agreement

will be enforceable unless the degree of substantive unconscionability is

high.'" (Serpa v. California Surety

Investigations, Inc. (2013) 215 Cal.App.4th 695, 704.)

Defendant emailed the Arbitration

Agreement to Plaintiff on April 29, 2025.

(Motion, Buckner Dec., ¶¶3-4.) The

agreement is a contract of adhesion that was presented on a "take it or leave

it" basis. (Id. at Exs. A and

B.) However, Plaintiff was given until

May 22, 2025 to review it and sign the acknowledgement page. (Id. at Ex. A.) Defendant's email also specifically

identified the updates included in the body of the email and summarized

them. (Id.). The Arbitration Agreement is only three pages

and in an easily readable font size. (Id.)

Surprise may be found

where substantively unconscionable terms were " 'artfully hidden' by the simple

expedient of incorporating them by reference rather than including them in or

attaching them to the arbitration agreement." (Baltazar, *supra*, 62

Cal.4th at 1246.) The Arbitration

Agreement incorporates by reference the NFL Constitution and Bylaws and the NFL

Dispute Resolution Procedural Guidelines.

Whether the NFL Commissioner hears the dispute, as opposed to JAMS,

depends on whether the NFL Commissioner determines "in his sole discretion"

that it is a "football-oriented dispute."

A "football-oriented dispute" depends on "whether the disputes relate to

arise out of the NFL Constitution and By-Laws, or any NFL or Club policies,

rules or regulations relating to football."

(Motion, Buckner Dec., Ex. B, "Mutual Arbitration Procedure," para. 7.) The Arbitration Agreement also describes what

is not a football-oriented dispute, "which would include, but not be limited

to, claims of discrimination, retaliation, termination and compensation." (Id.)

The failure to attach the NFL Constitution and By-laws rules adds to the procedural unconscionability of the agreement, because crucial terms that would decide whether the NFL Commissioner or JAMS would hear the dispute are not attached. The Arbitration Agreement also fails to direct employees to a source from which they can obtain those documents. Plaintiff establishes surprise based on the failure to incorporate these documents or provide sources from which employees obtain them.

Plaintiff therefore establishes a moderate level of procedural unconscionability. Plaintiffs therefore need only establish a moderate level of substantive unconscionability.

2. Plaintiff establishes a high level of substantive unconscionability

A mandatory employment arbitration agreement must satisfy five requirements to be lawful: (1) it provides for neutral arbitrators; (2) it provides for more than minimal discovery; (3) it requires a written award; (4) it provides for all of the types of relief that would be otherwise available in court; and (5) it does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. (Armendariz, supra, 24 Cal.4th at 102.)

Substantively unconscionable terms may take various forms but may generally be described as unfairly one-sided. One such form, as in Armendariz, is the arbitration agreement's lack of a modicum of bilaterality, wherein the employee's claims against the employer, but not the employer's claims against the employee, are subject to arbitration. (Armendariz, supra, 24 Cal.4th at p. 119.) "This analysis ensures that contracts, particularly contracts of adhesion, do not impose terms that have been variously described as overly harsh, unduly oppressive, so one-sided as to shock the conscience, or unfairly one-sided." (Fuentes v. Empire Nissan, Inc. (2026) 19 Cal.5th 93, 106.)

"Where, as here, the written agreement has been prepared entirely by the employer, it is a well established rule of construction that any ambiguities must be construed against the drafting employer and in favor of the nondrafting employee. Ultimately, the question is whether the

nondrafting employee, through oppression and surprise, was coerced or misled into making an unfair bargain.” (Id. at 106.)

An agreement provision

is also substantively unconscionable if it forces the employee to bear costs he or she would not normally have to bear in civil litigation. “[W]here employment is conditioned on mandatory arbitration, the employer cannot impose on the employee costs he or she would not normally have to pay if the case were litigated in a court.” (Wherry v. Award, Inc. (2011) 192 Cal.App.4th 1242, 1248.) “A mandatory arbitration agreement that contains within its scope the arbitration of FEHA claims impliedly obliges the employer to pay all types of costs that are unique to arbitration.... The absence of specific provisions on arbitration costs would therefore not be grounds for denying the enforcement of an arbitration agreement.” (Armendariz, supra, 24 Cal.4th at 113 [lack of provisions in employment agreement presumptively required employer to pay all arbitration costs and absence of specific provision concerning arbitration costs would not be grounds to deny enforcement of arbitration agreement].)

Plaintiff establishes

that the Arbitration Agreement fails to satisfy the first requirement under Armendariz to be lawful. The Arbitration Agreement does not provide for a neutral arbitrator.

The Arbitration Agreement provides, “The NFL Commissioner, or his designee, shall serve as the arbitrator of all disputes subject to the Procedure that are football oriented.”

(Motion, Buckner Dec., Ex. B, “Mutual Arbitration Procedure,” p. 38, para. 6.) However, whether a dispute is “football oriented” or not shall be determined in the Commissioner’s “sole discretion.” (Id. at p. 38, para.

7.) Although examples of disputes that are “not football-oriented” are provided and include “claims of discrimination, retaliation, termination and compensation,” the NFL Commissioner must still review an employee’s claims to determine whether they are football-oriented, even if they fall within the list of examples of “not football-oriented” claims. The Arbitration Agreement does not exclude such claims from the NFL Commissioner’s threshold review.

Thus, whether an

employee can even reach a neutral arbitrator at JAMS depends on the NFL Commissioner. The Arbitration Agreement acknowledges that the NFL Commissioner “works for the National Football League, an entity that represents 32 member clubs of the National Football League....” (Motion, Buckner Dec., Ex. B, p. 38, para. 6.) The Arbitration Agreement compels the employee to “acknowledge” that the Commissioner is “unbiased” and that his status as NFL Commissioner does not render him incapable of being neutral. (Id.)

The neutral-arbitrator requirement “is essential to ensuring the integrity of the arbitration process.” (Armendariz, supra, 24 Cal.4th at 103.) Compelling an employee to acknowledge that the Commissioner is unbiased is not sufficient. Defendant does not argue the NFL Commissioner meets the neutral-arbitrator requirement under Armendariz. Instead, Defendant argues that JAMS is a neutral arbitrator. Defendant does not address the NFL Commissioner’s “sole discretion” to determine that a matter is a “football-oriented dispute” and then act as the arbitrator for the matter.

In reply, Defendant again does not argue that the Commissioner is a neutral arbitrator. Instead, Defendant argues the Court can overcome any issue with the Commissioner neutrality by divesting him of his authority and finding that JAMS can determine the matter. Defendant relies on the provision stating, “If a court of competent jurisdiction determines that any dispute subject to this Procedure may not be arbitrated by the NFL Commissioner...the dispute shall be submitted to a JAMS arbitrator.” (Motion, Buckner Dec., Ex. B, p. 38, para. 7.)

Defendant’s suggestion does not cure the high level of substantive unconscionability that infects the procedure created by the Arbitration Agreement. The very fact that an employee must first obtain a court order determining that the NFL Commissioner cannot arbitrate his or her claims only adds another layer of one-sidedness to the Arbitration Agreement’s arbitration procedure. The procedure suffers from a high level of substantive unconscionability and lacks one of the most fundamental hallmarks of a lawful mandatory employment arbitration agreement—a neutral arbitrator. The mere fact that the Arbitration Agreement provides for JAMS as the arbitrator if a court finds an employee’s dispute may not be arbitrated by the NFL does not address this fundamental defect.

Plaintiff also argues

the Arbitration Agreement improperly imposes costs and fees on her if Defendant prevails. Plaintiff argues that under

FEHA, a prevailing defendant may only recover fees and costs from an employee-plaintiff if the action was objectively frivolous, unreasonable or groundless. (Gov. Code, §12965, subd.

(c)(6); *Williams v. Chino Valley Independent Fire Dist.* (2015) 61 Cal.4th 97, 99-100, 115.) However, the

Arbitration Agreement only allows a prevailing party to recover attorney's fees

and costs "to the extent permitted by applicable law." (Motion, Buckner Dec., Ex. B, p. 39, para. 12.) As such, the fee provision does not impose on

Plaintiff fees and costs she would not otherwise be subject to in civil litigation.

In addition to a

moderate degree of procedural unconscionability, the Arbitration Agreement

suffers from a high degree of substantive unconscionability. Plaintiff establishes that the Arbitration Agreement is unconscionable and therefore unenforceable.

3. Flores and Gruden cases

Plaintiff submits two out-of-state

cases in support of her opposition: (1) *Flores*

v. New York Football Giants, Inc. (5th Cir.) 150 F.4th 172 ("Flores")

and (2) *National Football League v. Gruden* (August 11, 2025) 573 P.3d 1240 ("Gruden"). Having reviewed

both *Flores* and *Gruden*, both cases are factually and legally distinguishable. The Court does not rely on either in concluding that the Arbitration Agreement is unconscionable under California contract law.

Although the arbitration

agreement in *Flores* also designated the NFL Commissioner as the arbitrator over employee claims, the Commissioner's lack of neutrality was more egregious, because the NFL was a named adverse party.

(*Flores*, supra, 150 F.4th at 183.) *Flores* did not reach the Massachusetts state law issue of unconscionability and instead denied enforcement of the purported arbitration agreement on grounds that it was not an arbitration agreement and the agreement was unenforceable based on the judicially created "vindication doctrine" exception to the FAA.

(*Id.* at 187.)

In Gruden, the Nevada Supreme Court invalidated the arbitration clause contained in the NFL Constitution as unconscionable under California state law. Under the NFL Constitution's arbitration provision, the NFL commissioner was designated as arbitrator. Like Flores, the lack of neutrality and independence was more pronounced in Gruden than here, because the NFL and the NFL Commissioner were named adverse parties. (Gruden, supra, 573 P.3d at *3.) Gruden also found the NFL Constitution containing the arbitration provision could be amended at any time by the NFL. (Id.)

Neither of these cases dealt with the precise facts here. The Court need not rely on either out-of-state case to find the Arbitration Agreement unconscionable under California law.

D. Request to Sever

"If the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result." (Civ. Code, § 1670.5, subd. (a).) "[C]ourts may liberally sever any unconscionable portion of a contract and enforce the rest when: the illegality is collateral to the contract's main purpose; it is possible to cure the illegality by means of severance; and enforcing the balance of the contract would be in the interests of justice." (Ramirez, supra, 16 Cal.5th at 517.)

"If a contractual clause is found unconscionable, the court may, in its discretion, choose to do one of the following: (1) refuse to enforce the contract; (2) sever any unconscionable clause; or (3) limit the application of any clause to avoid unconscionable results. The strong legislative and judicial preference is to sever the offending term and enforce the balance of the agreement. Though the statute appears to give a trial court some discretion as to whether to sever or restrict the unconscionable provision or whether to refuse to enforce the

entire agreement, it also appears to contemplate the latter course only when an agreement is permeated by unconscionability.

The trial court's decision to act as Civil Code section 1670.5 permits is reviewed for abuse of discretion." (Ramirez, supra, 16 Cal.5th at 513.)

"Even

if a contract can be cured, the court should also ask whether the unconscionability should be cured through severance or restriction because the interests of justice would be furthered by such actions. This part of the inquiry focuses on whether mere severance of the unconscionable terms would function to condone an illegal scheme and whether the defects in the agreement indicate that the stronger party engaged in a systematic effort to impose arbitration on the weaker party not simply as an alternative to litigation, but to secure a forum that works to the stronger party's advantage. If the answer to either question is yes, the court should refuse to enforce the agreement. [¶] In conducting this analysis, the court may also consider the deterrent effect of each option." (Id. at 516-517.)

In reply, Defendant asks that the Court sever any illegal provisions, enforce the Arbitration Agreement and order the matter to arbitration before JAMS. The Court declines to do so.

The Arbitration

Agreement contains a severance clause. (Motion, Buckner Dec., Ex. B, p. 39.) However, the Court's decision to sever is not determined by the parties' severance clause. The Court must exercise its discretion to sever in accordance with applicable law.

The Court finds

unconscionability permeates the Arbitration Agreement. The NFL Commissioner's gatekeeping role is fundamental to the arbitration procedure created by the Arbitration Agreement. The Arbitration Agreement was clearly drafted to place a thumb on the scales in the employer's favor and to obstruct the employee's access to a fair arbitration. Defendant inexplicably listed claims that were clearly not "football-oriented" (claims of discrimination, retaliation, termination and compensation) but stopped short of simply stating that those claims would be exempt from the NFL Commissioner's review and would be sent

directly to JAMS. The defects in the Arbitration Agreement indicate that Defendant engaged in a “systematic effort to impose arbitration on the weaker party not simply as an alternative to litigation, but to secure a forum that works to the stronger party's advantage.” (Ramirez, supra, 16 Cal.5th at 516-517.)

The NFL Commissioner's unsuitability as a neutral arbitrator under Armendariz is obvious, as evidenced by Defendant's failure to mention the NFL Commissioner's role in the arbitration procedure in its opening brief and its failure to argue in its reply brief that the NFL Commissioner would be a suitable neutral. The Arbitration Agreement provided that, if a court found an employee's claims could not be arbitrated by the NFL Commissioner, the claims would be sent to JAMS. Thus, in order to avoid this obviously unconscionable arrangement under the Arbitration Agreement, an employee would be forced to obtain a court order to avoid arbitration before the NFL Commissioner of his or her claims, even if those claims were among those identified as examples of “non-football oriented” claims in the Arbitration Agreement.

Given these facts, the interests of justice would not be served by severing the unconscionable provisions. The Arbitration Agreement is clearly unconscionable on its face. Defendant's also created an arbitration procedure created that was designed to make it difficult for the employee to reach a neutral arbitrator, even on those employment claims that Defendant expressly acknowledged were not football-oriented. Defendant could have excluded those claims from arbitration before the NFL Commissioner and designated them for arbitration before JAMS. Defendant did not. This causes a roadblock to an employee pursuing his or her employment related claims.

The Court must also consider the deterrent effect when deciding whether to sever an unconscionable provision. The Arbitration Agreement is an example of an employer's attempt to overreach, and insertion of such obviously unconscionable arbitration schemes must be discouraged. “An employer will not be deterred from routinely inserting such a deliberately illegal clause into the arbitration agreements it mandates for its employees if it knows that the worst penalty for such illegality is the severance of the clause after the employee has litigated

the matter. In that sense, the enforcement of a form arbitration agreement containing such a clause drafted in bad faith would be condoning, or at least not discouraging, an illegal scheme, and severance would be disfavored unless it were for some other reason in the interests of justice.” (Armendariz 24 Cal.4th at 124.)

Defendant’s request to sever the unconscionable provisions is denied.

IV. CONCLUSION

Defendant’s Motion to Compel Arbitration is DENIED.

Moving Party is ordered to give notice.

DATED:

April 7, 2025

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line “SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel’s contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative

ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.